



January 14, 2026

HOUSE BILL No. 1248

DIGEST OF HB 1248 (Updated January 14, 2026 1:11 pm - DI 106)

Citations Affected: IC 5-2.

Synopsis: Advanced DNA testing for cold cases. Establishes a process concerning eligibility for advanced DNA testing for cold cases.

Effective: July 1, 2026.

**Hamilton, McNamara, Bascom,
Bauer M**

January 5, 2026, read first time and referred to Committee on Courts and Criminal Code.
January 14, 2026, amended, reported — Do Pass.

HB 1248—LS 6736/DI 151



January 14, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1248

A BILL FOR AN ACT to amend the Indiana Code concerning state and local administration.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 5-2-27.4 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]:

4 **Chapter 27.4. Advanced DNA Testing for Cold Cases**

5 **Sec. 1. This chapter applies to law enforcement investigations or**
6 **county coroner investigations concerning the following:**

7 (1) **Homicide (IC 35-42-1).**

8 (2) **A sex offense (as defined by IC 11-8-8-5.2).**

9 (3) **High risk missing persons (as defined in IC 5-2-17-1).**

10 **Sec. 2. As used in this chapter, "advanced DNA testing"**
11 **includes:**

12 (1) **DNA forensics;**

13 (2) **DNA analytics; or**

14 (3) **genetic genealogy.**

15 **Sec. 3. As used in this chapter, "cold case" means either:**

16 (1) **a law enforcement investigation that:**

17 (A) **has been open for more than five (5) years; and**

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- 1 (B) has no pending charges; or
 2 (2) a county coroner investigation concerning the
 3 identification of unknown victims.

4 Sec. 4. As used in this chapter, "DNA profile" has the meaning
 5 set forth in IC 10-13-6-4.

6 Sec. 5. As used in this chapter, "eligible family member" means:

- 7 (1) an individual related to the victim by blood, half-blood,
 8 adoption, marriage, or remarriage, including:
 9 (A) a spouse;
 10 (B) a parent or stepparent;
 11 (C) a child or stepchild;
 12 (D) a grandchild or stepgrandchild;
 13 (E) a grandparent or stepgrandparent;
 14 (F) a brother, sister, stepbrother, or stepsister;
 15 (G) a niece or nephew;
 16 (H) an aunt or uncle;
 17 (I) a daughter-in-law or son-in-law;
 18 (J) a mother-in-law or father-in-law; or
 19 (K) a first cousin; or
 20 (2) an individual who cohabits or formerly cohabited with the
 21 victim.

22 Sec. 6. As used in this chapter, "law enforcement agency" has
 23 the meaning set forth in IC 35-47-15-2.

24 Sec. 7. As used in this chapter, "qualified entity" means an
 25 entity that meets all of the following requirements:

- 26 (A) The entity:
 27 (i) is exempt from federal income taxation under Section
 28 501(c)(3) of the Internal Revenue Code; and
 29 (ii) has as its purpose, in whole or in part, to assist in
 30 solving crimes through a partnership between the
 31 community and a law enforcement agency.
 32 (B) The entity has been in existence for at least five (5)
 33 years.
 34 (C) The entity has:
 35 (i) a certificate of existence on file with the secretary of
 36 state; and
 37 (ii) a determination letter from the Internal Revenue
 38 Service.
 39 (D) The entity has funding, or a demonstrated ability to
 40 raise funding, to cover the cost of advanced DNA testing
 41 under this chapter.
 42 (E) The entity agrees to cover all costs associated with



1 advanced DNA testing without use of state funding,
 2 including costs incurred by the state police laboratory in
 3 performing advanced DNA testing.

4 (F) The entity has entered into a memorandum of
 5 understanding with a law enforcement agency under
 6 section 10 of this chapter.

7 Sec. 8. As used in this chapter, "testing laboratory" means a
 8 laboratory that:

- 9 (1) conducts advanced DNA testing; and
 10 (2) adheres to the standards described in IC 10-13-6-14.

11 Sec. 9. As used in this chapter, "victim" means:

- 12 (1) a person who has suffered direct harm as a result of a
 13 crime; or
 14 (2) a high risk missing person (as defined in IC 5-2-17-1).

15 Sec. 10. (a) A law enforcement agency may enter into a
 16 memorandum of understanding with an entity for purposes of
 17 funding advanced DNA testing for cold cases under this chapter if
 18 the law enforcement agency finds the entity meets all of the
 19 requirements under section 8(A) through 8(E) of this chapter.

20 (b) A law enforcement agency may cancel or suspend the
 21 memorandum of understanding if the law enforcement agency has
 22 reason to believe that the entity no longer meets all of the
 23 requirements under section 8(A) through 8(E) of this chapter.

24 Sec. 11. The following individuals may submit a request to a
 25 qualified entity to determine eligibility for advanced DNA testing:

- 26 (1) The victim of a cold case.
 27 (2) An eligible family member of a cold case victim.
 28 (3) A county coroner.
 29 (4) A law enforcement agency that has entered into a
 30 memorandum of understanding with a qualified entity.

31 Sec. 12. A qualified entity shall determine eligibility for
 32 advanced DNA testing based on the following:

- 33 (1) The order in which the request is received.
 34 (2) The date of the crime.
 35 (3) The availability of funds.
 36 (4) Any other relevant criteria as determined by the qualified
 37 entity.

38 Sec. 13. Upon a determination of eligibility under section 12 of
 39 this chapter, the qualified entity shall notify the investigating law
 40 enforcement agency of the determination of eligibility.

41 Sec. 14. Upon notice of eligibility under section 13 of this
 42 chapter, the investigating law enforcement agency and a testing



laboratory shall collaborate to determine:

(1) the amount of DNA evidence available for testing; and

(2) the most appropriate advanced DNA testing options.

Sec. 15. A testing laboratory that conducts advanced DNA testing shall collect, preserve, and maintain the appropriate chain of custody of any evidence.

Sec. 16. The investigating law enforcement agency shall transmit any information concerning a DNA profile to the state police department for inclusion in the Indiana DNA data base and the combined DNA index system (as defined in IC 10-13-6-1).

Sec. 17. Nothing in this chapter shall prohibit a law enforcement agency from transferring DNA evidence to a testing laboratory for advanced DNA testing at the law enforcement agency's own expense.



COMMITTEE REPORT

Mr. Speaker: Your Committee on Courts and Criminal Code, to which was referred House Bill 1248, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 2, between lines 23 and 24, begin a new paragraph and insert:

"Sec. 7. As used in this chapter, "qualified entity" means an entity that meets all of the following requirements:

(A) The entity:

- (i) is exempt from federal income taxation under Section 501(c)(3) of the Internal Revenue Code; and**
- (ii) has as its purpose, in whole or in part, to assist in solving crimes through a partnership between the community and a law enforcement agency.**

(B) The entity has been in existence for at least five (5) years.

(C) The entity has:

- (i) a certificate of existence on file with the secretary of state; and**
- (ii) a determination letter from the Internal Revenue Service.**

(D) The entity has funding, or a demonstrated ability to raise funding, to cover the cost of advanced DNA testing under this chapter.

(E) The entity agrees to cover all costs associated with advanced DNA testing without use of state funding, including costs incurred by the state police laboratory in performing advanced DNA testing.

(F) The entity has entered into a memorandum of understanding with a law enforcement agency under section 10 of this chapter."

Page 2, line 24, delete "7." and insert "8."

Page 2, line 28, delete "Sec. 8." and insert "Sec. 9."

Page 2, between lines 31 and 32, begin a new paragraph and insert:

"Sec. 10. (a) A law enforcement agency may enter into a memorandum of understanding with an entity for purposes of funding advanced DNA testing for cold cases under this chapter if the law enforcement agency finds the entity meets all of the requirements under section 8(A) through 8(E) of this chapter.

(b) A law enforcement agency may cancel or suspend the memorandum of understanding if the law enforcement agency has reason to believe that the entity no longer meets all of the



requirements under section 8(A) through 8(E) of this chapter."

Page 2, line 32, delete "Sec. 9." and insert "**Sec. 11.**".

Page 2, line 32, delete "Crime" and insert "**a qualified entity**".

Page 2, line 33, delete "Stoppers of Central Indiana".

Page 2, between lines 37 and 38, begin a new line block indented and insert:

(4) A law enforcement agency that has entered into a memorandum of understanding with a qualified entity.

Page 2, line 38, delete "Sec. 10. Crime Stoppers of Central Indiana" and insert "**Sec. 12. A qualified entity**".

Page 3, line 1, delete "Crime" and insert "**the qualified entity**".

Page 3, line 2, delete "Stoppers of Central Indiana".

Page 3, line 3, delete "Sec. 11." and insert "**Sec. 13.**".

Page 3, line 3, delete "10" and insert "**12**".

Page 3, line 4, delete "Crime Stoppers of Central Indiana" and insert "**the qualified entity**".

Page 3, line 7, delete "Sec. 12." and insert "**Sec. 14.**".

Page 3, line 7, delete "section 11" and insert "**section 13**".

Page 3, line 12, delete "Sec. 13." and insert "**Sec. 15.**".

Page 3, line 15, delete "Sec. 14." and insert "**Sec. 16.**".

Page 3, line 19, delete "Sec. 15." and insert "**Sec. 17.**".

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1248 as introduced.)

MCNAMARA

Committee Vote: yeas 13, nays 0.

